

AMENDMENT TO AGREEMENT

This AMENDMENT TO AGREEMENT (this “Amendment”), is made effective as of the date last signed below (the “Amendment Effective Date”), by and between **Mindfully, LLC**, an Ohio limited liability company (“Mindfully”), and **Brecksville-Broadview Heights City School District** (“School District”). Mindfully and School District may be referred to individually as a “Party” or collectively as the “Parties”.

Recitals

A. WHEREAS, Mindfully and School District are parties to that certain Agreement for school-based services, for 2023-2024 school year, (the “Agreement”); and

B. WHEREAS, the Parties wish to amend the Agreement to allow the School District to provide Mindfully Providers (as such term is defined in the Agreement) with School District email accounts.

NOW, THEREFORE, the Parties wish to amend the Agreement, as set forth below.

Statement of Agreement

In consideration of the mutual covenants and agreements set forth in this Amendment, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Section 7.r of the Agreement is hereby deleted in its entirety and replaced with the following:

To protect student confidentiality, Mindfully Providers shall communicate via Mindfully supplied email accounts and not any internal or other supplied email accounts. Mindfully Providers shall also communicate via confidential voice service (or similar) for internal and external calls. Notwithstanding the foregoing, Mindfully Providers may be provided access to School District email accounts, which accounts shall be used only for the following purposes:

- (i) to allow for Mindfully Providers access to student schedules, which allows providers to find optimum time to meet with students, and permits ease of filling schedule gaps created by absences or no-shows;
- (ii) for operation of the School District copiers;
- (iii) to allow for Mindfully Providers inclusion on School District communications from administration, such as district updates, staff updates/changes, etc.;
- (iv) to provide Mindfully Providers with access to teacher and administration calendars to assist in arranging meetings; and
- (v) other similar administrative purposes that do not involve communications regarding specific students.

2. **Captions.** The headings to the Sections of this Amendment have been inserted for convenience of reference only and shall in no way modify or restrict any provisions hereof or be used to construe any such provisions.

3. **Counterparts.** This Amendment may be executed in multiple counterparts, each of

which shall be deemed to be an original but all of which together shall constitute one and the same agreement after each of the Parties have executed and delivered this Amendment.

4. Full Force and Effect. Except as expressly set forth above, all other terms and conditions set forth in the Agreement shall remain in full force and effect unchanged. In the event of a conflict between the Agreement and the terms of this Amendment, the terms of this Amendment shall control.

5. Incorporation of Recitals. The recitals set forth above are hereby incorporated into and made a part of this Amendment.

IN WITNESS WHEREOF, Mindfully and School District have executed this Amendment by their duly authorized representatives as of the Amendment Effective Date.

**BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT**

MINDFULLY, LLC

By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____